

Court No. - 21

Case :- WRIT - C No. - 7234 of 2023

Petitioner :- Irshad Ahmad

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Gyanendra Prakash Srivastava

Counsel for Respondent :- C.S.C., Chetan Chatterjee

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

The petitioner has challenged the final assessment order dated 12.8.2021 passed by the respondent-Electricity department under the provision of Electricity Act, 2003 in a case of theft of electricity.

Sri Chetan Chatterjee, learned counsel appearing on behalf of the respondent-Electricity department states that the recovery has been withdrawn and that a fresh order will be passed after affording opportunity of hearing to the petitioners.

Accordingly, the petition is disposed of with liberty to the respondent-Electricity department to pass fresh order after following the procedure prescribed under the U.P. Electricity Supply Code, 2005.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 1.3.2023

skv